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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP #023295); JOSE MELANO (CHP #023054); and DOES 1-10,** Defendants.	**Case No. 4:26-cv-08271-ASK** **DECLARATION OF BRENDAN NGWA NFORBI ISO ADMINISTRATIVE MOTION** Civil L.R. 7-11; Fed. R. Civ. P. 4(e)(1), 4(m); Cal. Code Civ. Proc. § 413.30 Judge: Hon. Ajay S. Krishnan Related: 4:26-cv-05953-ASK

I, BRENDAN NGWA NFORBI, declare as follows:

1. I am the Plaintiff in this action. I am over eighteen years of age. I make this declaration from my personal knowledge in support of Plaintiff's Administrative Motion for an Order Directing Deputy Attorney General Haiyang A. Li to Accept Service of Process on Behalf of Defendant Santiago Meza-Gonzalez. If called, I could and would testify competently to these facts.

2. This action arises from a November 1, 2024 encounter with California Highway Patrol Officers Santiago Meza-Gonzalez, badge 023295, and Jose Melano, badge 023054, on Interstate 580 East in Livermore. The operative pleading is the First Amended Complaint filed August 17, 2026 (Dkt. 5).

3. The Clerk issued summonses for both officers on August 10, 2026 (Dkt. 3). Meza-Gonzalez's summons is directed to the CHP Modesto Area duty station, 4030 Kiernan Avenue, Modesto, California 95356. Melano's summons is directed to CHP South Sacramento Area, 6 Massie Court, Sacramento, California 95823.

4. On August 13, 2026, I submitted a SER-001 request to the Stanislaus County Sheriff Civil Division asking that office to serve Meza-Gonzalez at the Modesto Area duty station, and a SER-001 request to the Sacramento County Sheriff asking that office to serve Melano at South Sacramento.

5. Melano was served on August 14, 2026. Process server Clifford Black, owner of C&P Process Server, delivered the summons to Officer Reed at 6 Massie Court. The AO 440 return states that Officer Reed is designated by law to accept service of process on behalf of the California Highway Patrol at that station. That return was filed August 17, 2026 as Dkt. 5-1. The clerk-stamped original was entered August 31, 2026 as Document 12 after this action was related to *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, and reassigned to this Court as No. 4:26-cv-08271-ASK.

6. No Rule 4(l) return has been filed as to Meza-Gonzalez. The Stanislaus SER-001 did not produce a filed return. On August 25, 2026, I prepared a private process-server packet for the same Modesto Area duty station — issued summons, operative First Amended Complaint, notice identifying that complaint, and the Court's CMC/ADR order. Defendant has not been produced for personal service at that station. He has not made himself available there. The duty-station method that completed service on his partner has not completed service on him.

7. I have personal knowledge of the same pattern in the earlier Alameda Superior Court action, No. 26CV168913. The State of California / CHP and Melano were served in that case

on March 25, 2026. Meza-Gonzalez was not. I had to apply ex parte for an extension of time to serve him. The court extended the deadline to May 4, 2026.

8. Deputy Attorney General Haiyang A. Li has been the lawyer for these officers on this incident throughout. In the Eastern District action, No. 2:25-cv-01460-DC-CSK, he filed the December 10, 2025 motion to dismiss and the January 5, 2026 reply on behalf of the State, CHP, Meza-Gonzalez, and Melano. I served my April 21, 2026 Objections and July 7, 2026 Notice of Supplemental Authority on him. On April 9, 2026, I spoke with him by telephone about the Alameda demurrer; he agreed in principle to a stay of that case and said he would consult his clients, including these officers, on magistrate-judge consent in the Eastern District action.

9. In the Alameda action he circulated a draft stay stipulation on April 13, 2026, accepted my counter-draft on April 14, and caused the stipulation to be filed the same day. In June 2026 he opposed my U-visa certification motion in that case on behalf of the State, CHP, Meza-Gonzalez, and Melano.

10. In the related action before this Court, *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, Li is counsel of record for Captain G. Serrato. He filed the August 26, 2026 motion to dismiss (Dkt. 18). I have served papers on him in that case at 300 South Spring Street, Suite 1702, Los Angeles, California 90013-1230, and at Haiyang.Li@doj.ca.gov.

11. Li has not appeared in this action. I have not been able to obtain a stipulation from him before filing this motion, because he is not counsel of record here while Meza-Gonzalez remains unserved. I am serving this motion on him concurrently at the Spring Street address and the email address above, and I request that he stipulate to accept service for Meza-Gonzalez. If he does, I will so advise the Court.

12. I am also serving this motion by first-class mail on Melano at the South Sacramento duty station where he was served, and I am sending a courtesy copy to Meza-Gonzalez at the Modesto Area duty station.

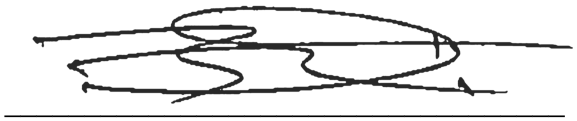
13. I am not asking the Court to disturb Melano's completed service. I am asking the Court to close the remaining Rule 4 gap by directing the lawyer who has represented Meza-Gonzalez on this incident to accept the papers.

14. True and correct copies of the caption pages of those filings are attached as Exhibit A (Eastern District motion to dismiss, December 10, 2025, naming Li as attorney for Meza-Gonzalez and Melano), Exhibit B (Alameda opposition to the U-visa certification motion, naming Li as attorney for the same defendants), and Exhibit C (Serrato motion to dismiss, August 26, 2026, naming Li as counsel of record for Captain Serrato).

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on September 1, 2026, at San Jose, California.

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona